

The amount of the settlement is appropriate given the strength of the case, especially in light of Counsel's estimated potential liability exposure. (Lazar Decl., ¶¶17-31 & 33.) However, the lower actual settlement appears fair and reasonable when calculated to include analysis of the possibility the class would not be certified; various potential defenses; as well as the potential appeal of any judgment should Plaintiffs be successful in this venue.

Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,² costs,³ administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion. The proposed notice is, also, adequate.

Counsel and the representative are appointed conditionally to represent the class. The motion is *granted*. The court will schedule a hearing to consider final approval at the closest available date to the date recommended by counsel.

The Court preliminarily approves the settlement and (1) appoints Bibiyan Law Group, PC, conditionally as Settlement Class Counsel; (2) appoints Fernando Carrillo Fajardo as Class Representative; (3) approves Apex Class Action LLC as Settlement Administrator; (5) preliminarily finds the settlement fair, reasonable, and adequate; and (6) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, counsel must advise the court of any pending cases that will be affected by approval of the settlement. Counsel must provide the *exact* number of class members and workweeks for the class settlement and the *exact* number of PAGA aggrieved employees and pay periods for the PAGA settlement.

² Counsel must provide a full lodestar analysis in the motion for final approval.

³ Costs must be documented. The court does not award costs for LEXIS or Westlaw usage (which are considered items of overhead), faxes (also overhead), or photocopying in excess of \$0.06 per page.

15. *Curiel v. Motivational Marketing LLC, et al*, Case No. CIVSB2310932
Plaintiff's Motion for Preliminary Approval of Class Action Settlement
6/25/26, 1:30 p.m., Dept. S-17

This matter was continued from its original hearing date of May 12, 2026, to allow the filing of an amended complaint

Tentative Ruling

The Court would **GRANT** the motion.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that "the settlement is fair, adequate and reasonable." (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has "broad discretion in making this determination." (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include "the strength of the plaintiffs' case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement." (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.) This list of factors "is not exhaustive and should be tailored to each case." (*Ibid.*) The court may "engage in balancing and weighing of factors depending on the circumstances of each case." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 245, overruled on other grounds in *Hernandez v. Restoration Hardware* (2018) 4 Cal.5th 260, 269.)

"Although the court gives regard to what is otherwise a private consensual agreement between the parties, the court must also evaluate the proposed settlement agreement with the purpose of protecting the rights of the absent class members who will be bound by the settlement." (*Wershba, supra*, 91 Cal.App.4th at p.245 [quoting *Dunk, supra*, 48 Cal.App.4th at p. 1801].) "The court must therefore scrutinize the proposed settlement agreement to the extent necessary to "reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned." (*Ibid.* [quoting *Officers for Justice v. Civil Service Com'n* (9th Cir. 1982) 688 F.2d 615, 625].)

Nevertheless, the settlement is entitled to a "presumption of fairness . . . where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (*Kullar, supra*, 168 Cal.App.4th at p. 128 [quoting *Dunk, supra*, 48 Cal.App.4th at p. 1802].)

Provisional Class Certification at Preliminary Approval

Although a lesser standard can be used to provisionally certify a settlement class, the court still needs to review and consider each element for certification. (*Global Minerals & Metals Corp. v. Superior Court* (2003) 113 Cal.App.4th 836, 859.) But, as settlement eliminates the need for trial, “the case management issues inherent in ascertainable class determination need not be confronted.” (*Ibid.*)

A class should be certified when “the question is one of a common or general interest, of many persons, or when parties are numerous and it is impracticable to bring them all before court.” (Code Civ. Proc., § 382.) There must be both an ascertainable class and a well-defined community of interest, which includes predominate questions of law or fact, class representatives with claims typical of the class, and class representatives who can adequately represent the class. (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.)

Settlement Notice

“If the court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (Rules of Court, rule 3.769(f); *Wershba v. Apple Computer, Inc.*, *supra*, 91 Cal.App.4th at p. 251.)

“The purpose of the class notice in the context of a settlement is to give class members sufficient information to decide whether they should accept the benefits offered, opt out and pursue their own remedies, or object to the settlement. As a general rule, class notice must strike a balance between thoroughness and the need to avoid unduly complicating the content of the notice and confusing class members. Here, again, the trial court has broad discretion. (*Wershba*, *supra*, 91 Cal.App.4th at p. 252.)

The manner of notice shall be by means reasonably calculated to apprise the class members of the settlement. (Rules of Court, rule 3.766(f).) The standard is “whether the notice has ‘a reasonable chance of reaching a substantial percentage of the class members.’” (*Wershba*, *supra*, 91 Cal.App.4th at p. 251.) The court must consider the interest of the class, type of relief obtained, the state of the individual class members, the costs of notifying the class members, the resources of the parties, the possible prejudice to the class members who do not receive notice, and the *res judicata* effect on the class members. (Rules of Court, rule 3.766(e).)

The Proposed Settlement

This is a putative wage-and-hour class and representative action. Plaintiffs seek to represent all current and former non-exempt employees for Defendant working in California during the statutory period. (SAC, ¶11.)

The procedural history is as follows: On May 9, 2023, Plaintiff Curiel filed her notice letter with the LWDA in furtherance of a Private Attorneys General Act (PAGA) claim. On or about May 17, 2023, she filed this putative class Complaint (CIVSB2310932) alleging various wage-and-hour violations. After the exhaustion of administrative remedies, Plaintiff Curiel filed a First Amended Complaint on April 3, 2024, to add a cause of civil penalties pursuant to the Private Attorneys General Act (PAGA).

Relevant here, Plaintiff Aguilar filed a similar putative class complaint (CIVSB2317884) on August 24, 2023. In the furtherance of settlement, Plaintiff Curiel filed a Second Amended Complaint (SAC) in her matter (CIVSB2310932) to add Plaintiff Aguilar to *her* case and to fold in all causes of action for the purposes of this proposed settlement. The SAC adds Plaintiff Aguilar and alleges violations relating to (1) minimum and overtime wages; (2) meal periods; (3) rest breaks; (4) reimbursements; (5) accurate wage statements; (6) waiting time penalties; as well as (7) violation of the unfair competition law (UCL); (8) civil penalties pursuant to PAGA. Notably, the UCL and PAGA claims are underpinned by the alleged wage-and-hour violations.

After commencing the various suits, the Plaintiffs sought and received extensive discovery, including a substantial sampling of time and payroll records. (Garay Decl., ¶¶19 & 20; Settlement, ¶136.) Plaintiff also received policy documents. (*Ibid.*) Thereafter, on January 21, 2025, the parties engaged in a full-day, arms-length mediation with Mike Young, an experienced neutral. (Garay Decl., ¶19.) While the matter did *not* settle that day, it later settled in the abstract pursuant to a mediator's proposal. (*Ibid.*) The parties eventually executed a long-form settlement agreement by November of 2025. (Garay Decl., Exh. A [Settlement].) Notice of the settlement was sent to the LWDA contemporaneously with the filing of this motion. (Garay Decl., ¶10.)⁴

The class size is currently estimated at 372. For purposes of settlement, the class period will reach from August 29, 2022, through the date of preliminary approval. (Settlement, ¶17.) The PAGA period is *also* from August 29, 2022, through the date of preliminary approval. (Settlement, ¶122.) Though no express number of PAGA aggrieved employees is mentioned, the Court presume that *all* class members are also PAGA aggrieved employees, given the overlapping periods. However, movant will confirm this fact at final approval.

The settlement is proposed on the following terms: Defendants will pay a gross, non-reversionary settlement amount of \$300,000.00, from which will be deducted (1) \$100,000.00 for Class Counsel's attorneys' fees (1/3rd the gross); (2) costs not to exceed \$25,000.00; (3) Plaintiffs' enhancement fees of no more than \$10,000.00 for Curiel and \$5,000.00 for Aguilar (or, \$15,000 total); (4) claims administration fees of no more than \$24,500.00; and

⁴ The declaration indicates that notice to the LWDA of the settlement "will be" sent concurrently with the filing. (Garay Decl., ¶10.) Any final approval will be contingent on declaration and attachment *confirming* such notice as indicated.

(5) PAGA penalties of \$30,000.00 (of which \$22,500, or 75%, will go to the LWDA and \$7,500, or 25%, will go to the aggrieved employees).

The parties estimate this will leave a wage-and-hour only net settlement amount of a non-reversionary \$105,500.00. This amount would be split by the class of approximately 372 employees in proportionate shares determined by number of workweeks within the Settlement Class Period. The average per class member would be \$283.60. Twenty five percent (25%) of the payout would be representative of wages, and the remaining seventy five percent (75%) would be representative of penalties and interest. (Settlement, ¶157.)

Given the 372 PAGA aggrieved employees, the average PAGA payout would be \$20.16.

The amount of the settlement is appropriate given the strength of the case, especially in light of Counsel's estimated potential liability exposure. (Garay Decl., ¶¶42-69.) However, the lower actual settlement appears fair and reasonable when calculated to include analysis of the possibility the class would not be certified; various potential defenses; as well as the potential appeal of any judgment should Plaintiffs be successful in this venue.

Given the presumption of fairness, the Court would find the figure sufficient to satisfy the *Kullar* requirement. Further, adequate discovery and investigation has occurred. There is no evidence of fraud or collusion. Class Counsel are well qualified to represent the class. The settlement was reached through an arms-length negotiation with the assistance of an experienced and well-respected mediator. The deductions from the gross settlement fund (attorneys' fees,⁵ costs,⁶ administration fee, incentive award, PAGA penalties, and taxes) appear to be reasonable and appropriate and are, therefore, *preliminarily* approved in the "not to exceed" amounts in the motion. The proposed notice is, also, adequate.

Counsel and the representative are appointed conditionally to represent the class. The motion is *granted*. The court will schedule a hearing to consider final approval at the closest available date to the date recommended by counsel.

The Court preliminarily approves the settlement and (1) appoints Jose Garay, conditionally, as Settlement Class Counsel; (2) appoints Yudit Curiel and Ivette Aguilar as Class Representatives; (3) approves Phoenix Settlement Administrators as Settlement Administrator; (5) preliminarily finds the settlement fair, reasonable, and adequate; and (6) approves the form and content of the proposed Class Notice and directs the mailing of the same.

At final approval, counsel must advise the court of any pending cases that will be affected by approval of the settlement. Counsel must provide the *exact* number of class members and

⁵ Counsel must provide a full lodestar analysis in the motion for final approval.

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workweeks for the class settlement and the *exact* number of PAGA aggrieved employees and pay periods for the PAGA settlement.

TENTATIVE